

The U.P. Regulation of Coaching Rules, 2002

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State of Uttar Pradesh - Act

The U.P. Regulation of Coaching Rules, 2002

UTTAR PRADESH

India

The U.P. Regulation of Coaching Rules, 2002

Rule THE-U-P-REGULATION-OF-COACHING-RULES-2002 of 2002

Published on 2 July 2002

Commenced on 2 July 2002

[This is the version of this document from 2 July 2002.]

[Note: The original publication document is not available and this content could not be verified.]

The U.P. Regulation of Coaching Rules, 2002

Published vide Notification No. 1324/71-2002-15(3)-97 dated 2 July 2002, U.P. Gazette Extra Part 4 Section (Kha) dated 2nd July 2002

In exercise of the powers under Section 15 of the Uttar Pradesh Regulation of Coaching Ordinance, 2002 (U.P. Ordinance No 8 of 2002), the Governor is pleased to make the following rules :

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Regulation of Coaching Rules, 2002.

(2)

They shall come into force with effect from the date of their publication in the Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

"Certificate" means the certificate of registration issued under sub-section (3) of Section 3;

(b)

"Form" means a form appended to these rules;

(c)

"Ordinance" means the Uttar Pradesh Regulation of Coaching Ordinance, 2002;

(d)

"Section" means a section of the Ordinance,

(2)

Words and expressions used but not defined in these rules and defined in the Ordinance, shall have the meanings assigned to them in the Ordinance.

3.

Application for registration (Section 3).

(1)

The application for registration under sub-section (1) of Section 3 shall be made in Form 1 which shall be obtainable from the Competent Officer on payment of rupees one hundred.

(2)

The application under sub-rule (1) shall be accompanied by original treasury chalan of the payment of the fee for registration payable under Rule 4.

4.

Fee for registration [Section 3(2)].

- The fee payable for registration under these rules shall be in accordance with the number of students enrolled or intended to be enrolled in a coaching centre as given hereunder-

(a)

Not exceeding fifty students.....Rs. 10,000.00

(b)

Exceeding fifty students.....Rs. 25,000.00

5.

Manner of payment of fee [Section 3(2)].

- The fee for registration payable in accordance with Rule 4 shall be deposited through treasury chalan in the following head-

"2202-Shiksha, Khelkud, Kala Evam Sanskriti-01-Samanya Shiksha-103-Vishwavidyalaya Aur Uchchatar Shiksha-99-Prakima Praptiyan."

6.

Register for Registration Certificate.

- The Competent Officer shall maintain a register in Form 2 wherein every application received under Rule 3 shall be entered serially and the persons who have been found suitable under the provisions of the Ordinance for registration, shall also be registered in the appropriate column.

7.

Certificate.

(1)

There shall be issued a certificate of registration in Form 3.

(2)

The certificate referred to in sub-rule (1) shall be issued for a period of three years from the date of issue thereof.

(3)

Where a person to whom the certificate is issued wishing to continue the coaching after the expiry of the period of the certificate, he may obtain a fresh certificate in accordance with Rules 3, 4 and 5 before the expiry of the period of the

certificate.

(4)

The certificate referred to in sub-rule (3) shall bear the same registration number which has been allotted to a person in the certificate issued firstly.

8.

Undertaking for registration of coaching [Section 4].

- The undertaking required under Section 4 shall be in Form 4.

9.

Sub-offices of Coaching Centre [Section 3].

- Where a certificate has been issued to a person who is running a coaching centre and has or will have a branch of such coaching, such person shall obtain a separate certificate for that branch in accordance with Rules 3, 4 and 5 from the concerned Comp Officer. Every branch of a coaching centre shall be deemed to be a separate unit of coaching for the purpose of these rules.

10.

Appeal [Section 6].

- The appeal under Section 6 shall be heard and decided by the Vishesh Sachiv, Uchcha Shiksha, Uttar Pradesh Shasan, Lucknow on behalf of the State Government.

11.

Change of Address [Section 15].

- If a person, who holds a certificate, changes the place of coaching, he shall inform in writing regarding such change to the Competent Officer, who shall communicate such change to the concerned Competent Officer.

12.

Display of certification.

- Every person running a coaching centre shall exhibit the registration number mentioned in the certificate on the right hand top of the name plate of the coaching centre.

13.

Duplicate copy of certificate [Section 15].

(1)

Where the certificate is lost, destroyed or defaced, the person running the coaching centre may apply to the Competent Officer for the grant of a duplicate copy thereof:

Provided that in the case of defacement, the original certificate shall be surrendered along with the application.

(2)

Every application under sub-rule (1) shall be accompanied by a fee of Rupees one hundred.

(3)

If the Competent Officer after making such inquiry, if any, as he deems necessary, is satisfied that the applicant is entitled to a duplicate copy of the certificate, he shall issue the same.

(4)

The certificate issued under sub-rule (3) shall bear the number and the date of the original certificate, and also bear the word 'Duplicate' on the top.

14.

Records [Sections 8 and 15].

- The records under Section 8 shall include-

(1)

a register pertaining to the teaching and non-teaching staff of the coaching centre;

(2)

a register pertaining to the students enrolled in each batch at the coaching centre;

(3)

a receipt book with a counterfoil for the fee realised from the students;

(4)

a payment register of the teaching and non-teaching staff employed by the coaching centre.

15.

Inspection [Section 8].

(1)

The Competent Officer may-

(a)

inspect a coaching centre to ensure that the conditions of registration are being observed;

(b)

investigate any complaint written or oral which may be made to him in respect or contravention of any of the provisions of the Ordinance of these rules, as early as possible not exceeding a fortnight from the date of receipt of the complaint;

(c)

detect the practice of coaching in contravention of the provisions of the Ordinance of these rules.

(2)

A complaint under sub-section (4) of Section 9 shall be filed as early as possible not exceeding thirty days from the date of inspection if the competent officer is satisfied that an offence punishable under subsection (1) or sub-section (2) of Section 9 has been committed;

(3)

The Competent Officer shall, after an inspection under Section 8, prepare a report under sub-section (3) of Section 8 if he is satisfied that any defect or irregularity, other than an offence under sub-section (1) or sub-section (2) of Section 9, has been committed.

Form 1

[See Rule 3(1)]

Application for registration under Section 3 of the Uttar Pradesh Regulation of Coaching Ordinance, 2002

Office of the Regional Higher Education officer District Inspector of Schools

District.....

1. Name of the applicant, with father's or husband's name, surname, residential address in full.
2. Name of all the persons forming an unincorporated body, with father's or husband's name, surname, residential address in full.
3. Name, in which the applicant carries on or intends to carry on his coaching centre.
4. Name of the area within which the applicant carries on or intends to carry on coaching on the date of application.
5. Names of the persons responsible for management of the applicant's coaching centre with the father's or husband's name, surname, residence and address in full.
6. Location of the applicant's principal place of coaching with full particulars thereof.
7. Total number of students to whom the applicant intends to coach in the year for which the application has been made.
8. Has the applicant carried on coaching prior to the commencement of the Ordinance and if so, since when?
9. Has any application for registration previously been made? If so, when, where and with what results?
10. Has any registration certificate issued previously to the applicant been cancelled or suspended or does it contain endorsements of the court or any disqualification imposed by the Court? If so, full particulars should be given including the name of the officer and/or court and the date and terms of the order.
11. Is coaching the sole business of the applicant or is he engaged in any other business, profession or calling? If so, state such business, profession or calling.
12. Amount of fee deposited and the number and date of the treasury chalan through which the amount of fee has been paid.

I, hereby declare that the facts set out in this application are true to my personal knowledge.

It is requested that necessary certificate of registration may be issued in favour of the applicant for carrying on coaching.

Signature of the applicant with date

Enclosures

Form 2

[See Rule 6]

Register of Persons running or managing a Coaching Centre Office of the Regional Higher Education Officer/District Inspector of Schools

Sl. No.

Name, father's or husbands name and full address

of the applicant

Name, parentage and address of the persons

responsible for running or managing the coaching centre

Full details of the place of Coaching

1

2

3

4

Date of receipt of the application

Amount and mode of payment of fee with full
details and date of payment

Date and number of certificate of registration
issued to the applicant

5

6

7

Particulars of cancellation, suspension or
refusal to issue the certificate

Duplicate certificate if any, issued with date

Signature of Regional Higher Education

Officer/District Inspector of Schools

Remarks

8

9

10

11

Form 3

[See Rule 6]

Certificate of Registrations

1. Registration No.

2. Full name and address of the person running or managing the coaching centre.

3. Full name(s) of person responsible for coaching.

4. Full particulars of the place of coaching.

5. Period for which the certificate is issued.

This registration certificate shall be valid for a period of three years from.....(the date of issue), subject to the provision of the Uttar Pradesh Regulation of Coaching Ordinance, 2002 and the rules made thereunder. Fee of rupees.....only has been paid through Treasury Chalan No..... dated.....

Seal

Competent Officer Seal

Date of issue... ..

Endorsement, if any :

Signature Remarks :

Form 4

(See Rule 8)

I.(name of the Applicant), S/o Shri..... a resident of..... (full address) hereby undertake that I have not engaged and shall not engage any teacher or employee of an institution as defined under the Uttar Pradesh Regulation of Coaching Ordinance, 2002.

Place:

Date

Signature of the applicantFull name and address

Signature of the Witnesswith name and address

[Notification]

[Notification No. 1325/LXX-I-2002, dated 3 July 2002, Published in U.P. Gazette Extra Part 4 Section (Kha) dated 3rd July 2002.]

In exercise of the powers under clause (I) of Section 2 and subsection (4) of Section 9 of the Uttar Pradesh Regulation of Coaching Ordinance, 2002 (U.P. Ordinance No. 8 of 2002), the Governor is pleased to authorize the officers mentioned in Column 2 of the Schedule below in relation to the Institutions or Coaching Centres situated within the areas specified against each in Column 3, and to perform the functions of the Competent Officer specified against each in Column 4 of the said Schedule-

Schedule

Sl. No.

Officer authorized

Areas falling under the jurisdiction

Functions

1

2

3

4

1.

All Vice-Chancellors of the State Universities

or their nominee not below the rank of a Reader

Respective territorial area of each of the State

Universities as defined in Uttar Pradesh State Universities Act,
1973

(i) Inspection of

Coaching Centres

(ii) Passing of

order in writing regarding any defect or irregularity of

Coaching Centre

(iii) Filing of complaint in writing in the

court against a person who commits an offence punishable under
the Uttar Pradesh Regulation of Coaching Ordinance, 2002

2.

The Director Higher Education Uttar Pradesh

All the revenue districts of Uttar Pradesh

-do-

3.

The Director, Secondary Education, Uttar

Pradesh

-do-

-do-

4.

The Director, Basic Eduaion, Uttar Pradesh

-do-

-do-

5.

The Director, Technical Education, Uttar

Pradesh

All the revenue districts of Uttar Pradesh

-do-

6.

District Magistrate of all the districts

Respective revenue district

-do-

7.

Additional District Magistrate of all the districts

-do-

-do-

8.

All the Chief Development Officers of all the districts

-do-

-do-

9.

Regional Higher Education Officer, Agra
Revenue districts of Agra

(i) Registration of
Coaching

(ii) Maintaining the
register registration of Coaching

(iii) Inspection of Coaching
Centres

(iv) Passing of order in writing
regarding any defect or irregularity of a registered Coaching
Centre

(v) Filing of complaint in writing in the court against a
person who commits an offence punishable under the Uttar Pradesh
Regulation of Coaching Ordinance, 2002

10.

Regional Higher Education Officer, Bareilly
Bareilly

-do-

11.

Regional Higher Education Officer, Gorakhpur
Gorakhpur

-do-

12.

Regional Higher Education Officer, Jhansi
Jhansi

-do-

13.

Regional Higher Education Officer, Kanpur
Kanpur

-do-

14.

Regional Higher Education Officer, Lucknow
Lucknow

-do-

15.

Regional Higher Education Officer, Meerut
Meerut

-do-

16.

Regional Higher Education Officer, Varanasi

Varanasi

-do-

17.

District Inspectors of Schools of all districts

except the districts of Agra, Bareilly, Gorakhpur, Jhansi,

Kanpur, Lucknow, Meerut and Varanasi

Within their respective districts

-do-

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